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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

Reserved on	***25.09.2026***
Pronounced on	***16 .10.2026***

CORAM

THE HONOURABLE MR.JUSTICE RAJNISH PATHIYIL

WP(MD) NO. 2833 of 2021

{CNR: HCMD0100779992021} Case QR

K. Mohameed Abdul Wahab Petitioner(s)

Vs

1. The State Of Tamilnadu,
   Represented by its Secretary,
   Revenue Department,
   Saint George Fort,
   Chennai – 600 009.

2. The District Collector,
   Nagercoil,
   Kanyakumari District.

3. The Tahsildar,
   Thovalai Taluk,
   Thovalai,
   Kanyakumari District. Respondent(s)

For Petitioner **:** Mr.C. Kishore

For Respondent(s): Mr. T. Cibi Chakraborthy,
Additional Government Pleader

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Prayer: Writ Petition is filed under Article 226 of the Constitution of India, to issue an appropriate writ or Order or Direction in the nature of writ of Certiorarified Mandamus, to call for the records pertaining to the impugned order of the 2nd respondent herein in his proceedings in Na.Ka.Aa2 / 47522/2018, dated 16/12/2019 and quash the same as illegal and consequently direct the respondents to the petitioner's pension by considering his entire period of service, i.e. from 10/11/1975 to 30/09/2007, or par with various Judgments made by this Court and further direct the respondents to sanction the petitioner's full pensionary benefits accordingly.

ORDER

This writ petition has been filed seeking for the issuance of a writ of Certiorarified Mandamus, calling for the records relating to the order dated 16.12.2019 passed by the second respondent in Na. Ka. Aa2/47522/2018 and consequently directing the respondents to fix the petitioner's pension by taking into account his entire period of service from 10.11.1975 to 30.09.2007.

2. The averments set out in the affidavit filed in support of the writ petition are as follows:

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2(i). The petitioner is a retired employee who served in the Revenue Department of the Government of Tamil Nadu and ultimately retired as a Village Administrative Officer. It is his case that, by virtue of proceedings vide A3.7821/75, he was temporarily appointed as a 'Vetti' in Ananthapuram village, in the scale of pay fixed for 'Vetti' under the Tamil Nadu pattern. He joined service on 10.11.1975 and thereafter served in Arumanalloor, Boothapandy, Easanthimangalam and Cherumadam villages of Kanyakumari District as a 'Vetti'. After serving for 31 years and 9 months, he retired from service on 30.09.2007, on attainment of superannuation.

2(ii). The present writ petition has been filed on the contention that the petitioner had submitted a representation to the third respondent seeking to have his service reckoned from 10.11.1975. However, the third respondent returned the proposal, stating that, vide G.O.Ms.No.625, dated 06.07.1995, the petitioner's services had been regularised only with effect from 01.06.1995 and that there was no basis for computing his service from 10.11.1975.

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2(iii). It is further contention of the petitioner is that, unlike other Village Officers or Talayari, as the nomenclature was applied in various parts of the State, he was appointed as a 'Vetti', who was also a village servant. His appointment was not on a part-time basis but on a temporary basis. Therefore, according to him, G.O.Ms.No.625, dated 06.07.1995, applies only to persons who were working as part-time Village Assistants or part-time Village Officers. It is his further contention that, after his retirement, he submitted a representation dated 12.03.2015. Though the representation was acknowledged by the respondents, it was not considered. Thereafter, the petitioner filed **W.P.No.6590 of 2015** ***(Mohammed Abdul Wahab v. The State of Tamil Nadu and Others)***, seeking a direction to the respondents to consider his representation and reckon his entire period of service, namely, from 10.11.1975 to 30.09.2007, for the purpose of granting full pensionary benefits.

3. This Court, by order dated 20.03.2019, directed the respondents to consider the representation. Pursuant thereto, the representation dated 12.03.2015 was considered, and an order dated 16.12.2019 was passed rejecting the petitioner's claim. It is the petitioner's

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further case that, while rejecting his representation, the second respondent relied upon a judgment of this Court in ***G. Selvaraj v. The State of Tamil Nadu*** **W.P. (MD) No. 17281 of 2014** dated 23.07.2019 holding that past services could not be reckoned for pensionary benefits in the case of Village Assistants, in view of Rule 11(4) of the Tamil Nadu Pension Rules, 1978. The rejection order further stated that persons similarly placed as the petitioner had been regularised only pursuant to G.O.Ms.No.625, issued by the Revenue Department on 06.07.1995, with effect from 01.06.1995. Therefore, their past part-time service could not be taken into account for computing pensionary benefits and the past services cannot be reckoned.

4. On the aforesaid factual basis, the petitioner contends that the second respondent ought not to have rejected his claim, particularly when this Court, in **W.P.No.12776 of 2012**, dated 25.03.2014, had passed a similar order in the case of ***C. Chellam v. The Principal Accountant General (A&E).*** The petitioner seeks to distinguish his case by contending that, although the Tamil Nadu Village Servants Service Rules, 1980, came into force subsequently, he had been appointed much earlier, i.e., on 10.11.1975. Therefore, according to him, the subsequent Rules would not apply to his

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case, and his service would be governed by the Rules that were in force on the date of his appointment.

5. He further contends that the reliance placed by the second respondent on Rule 14 of the Tamil Nadu Village Servants Service Rules, 1980, is not sustainable, as the said provision was inserted only on 01.09.1984, vide G.O.No.1495, Revenue Department, long after his appointment in 1975. He submits that the said Rules do not stipulate that the appointments of Village Servants are on a part-time basis and that Rule 14, which deals with the amount payable on retirement to Village Assistants appointed on a part-time basis, cannot be applied to him, as he was initially appointed on a temporary basis with a scale of pay. It is also his case that he and other similarly placed persons were appointed on a temporary basis, in a specified scale of pay, in the newly bifurcated villages of Kanyakumari District, pursuant to the formation of 17 new villages vide G.O.Ms.No.1914, dated 19.04.1973. He submits that the appointment orders did not stipulate that their appointments were on a part-time basis.

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6. He further contends that G.O.Ms.No.625, Revenue Department, dated 06.07.1995, cannot be relied upon to treat his service as regularised only with effect from 01.06.1995. Placing reliance on the judgment of this Court in the ***District Collector and Another v. K.Raman Nair*** **W.A.(MD) No.16 of 2009**, dated 16.02.2009, he submits that the Hon'ble Division Bench, while dismissing the appeal preferred by the Government, clarified that the said Government Order applies only to persons initially appointed as part-time Village Assistants and subsequently appointed on a full-time basis in a time scale of pay, and not to persons, such as the petitioner, who were initially appointed on a temporary basis in a time scale of pay. He further submits that such temporary appointees cannot be denied pensionary benefits by relying upon the said Government Order. Accordingly, he contends that the rejection of his request to reckon his past services from 1975 is unsustainable and seeks to have the impugned order set aside.

7. At the outset, the learned counsel appearing for the petitioner took this Court through the Tamil Nadu Village Servants Service Rules, 1980. He submitted that the Rules came into force on 21.01.1981, applied to the entire State of Tamil Nadu and governed village servants appointed under the

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various enactments referred to in Rule 1(3) and (4) thereof, which read as follows:

> *"(3) They extend to the whole of the State of Tamil Nadu.*
> *(4) They shall apply to all Village Servants:-*
> *(i) appointed on or after the coming into force of these rules;*
> *(ii) appointed under the Madras Proprietary Estates Village Service Act, 1894 (Madras Act 2 of 1894) of the Madras Hereditary Village Officers Act, 1895 (Madras Act 3 of 1895) and who continue to hold office by virtue of sub-section (3) of Section 2 of the Tamil Nadu Proprietary Estates Village Service and the Tamil Nadu Hereditary Village Officers (Repeal) Act, 1963 (Tamil Nadu Act 20 of 1968) or under*
> *(iii) the Tamil Nadu Village Officers (Appointed under the Board's Standing Orders) Service Rules, 1978; and*
> *(iv) under the Tamil Nadu Village Officers Service Rules, 1970 on the date of coming into force of these rules."*

8. He also referred to Rule 2 of the aforesaid Rules, 1980, which defines "Village Servants" as follows:-

> *"a) In these rules "Village Servant" means any person appointed as Talayari (தலையாரி) Vetti (வெட்டி) or Nirganti (நிர்காந்தி)"*

9. The learned counsel submitted that, since the petitioner had been appointed before the 1980 Rules came into force, the said Rules would not apply to him. He thereafter referred to the Tamil Nadu Village Officers Service Rules, 1970, and submitted that those Rules did not apply to the entire State of Tamil Nadu. An exception had been made in respect of

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Kanyakumari District, Sengottai Taluk of Tirunelveli District and the City of Madras. He further submitted that the relevant service rules identified Talayari, 'Vetti' and Nirganti as categories of village servants. The relevant extracts of the said Rules are reproduced below:

> *" 1. (1) These rules may be called the Tamil Nadu Village Officers Service Rules, 1970.*
> *(2) **They extend to the whole 'o' the State of Tamil Nadu except-***
> ***(i) The Kanyakumari District and the Shencottah Taluk of the Tirunelveli District; and***
> ***(ii) the City of Madras***
> *(3) They shall apply to all appointments made after the publication of these rules in the Tamil Nadu Government Gazette.*
> *2. Constitution - The service shall consist of the following categories of officers namely :-*
> *Category 1 - Village Headman, Additional Village Headman.*
> *Category 2 Village Karnam, Additional Village Karnam*
> ***Category 3 – Talayari, 'Vetti', Nirganti" (**emphasis Supplied)*

10. The learned counsel submitted that it was necessary to examine the historical background of the appointments of village Karnams, Village Officers and village servants to appreciate the distinction sought to be drawn in the petitioner's case. According to him, Kanyakumari District and Sengottai Taluk comprised several villages that had formed part of the erstwhile Travancore-Cochin State. Upon the reorganisation of States under the States Reorganisation Act, 1956, certain villages were incorporated into

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the State of Tamil Nadu and placed within Kanyakumari District and Sengottai Taluk. That, according to the learned counsel, was the reason why the 1970 Rules were not made applicable to those areas. The Rules were also not made applicable to the City of Madras. He further therefore submitted that the petitioner's appointment order dated 8.11.1975 clearly demonstrated the nature of his appointment. The relevant portion of the order reads as follows:

> *"Under the provisions contained in G.O. Press No.3597, Revenue, dated 20.11.1970, the following persons selected for appointment as 'Vetti's in Thovalai and Ananthapuram villages, in the place of the existing vacancies of village men, as shown in the statement appended below: The appointment made in this order is purely temporary, and they will be paid at the scale of pay fixed for 'Vetti' under Tamil Nadu pattern.*
>
> *They should take their bona fide residence in their respective villages. The individuals should join duty in the respective villages forthwith."*

11. The learned counsel submitted that, although the appointment order described the appointments as purely temporary, the nature of the appointments in Kanyakumari District and Sengottai Taluk was materially different from that of the part-time appointments made in other parts of Tamil Nadu. According to him, while the village servants in other districts were

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appointed on a part-time basis, the appointments in these areas were temporary appointments carrying a specified scale of pay. He further emphasised that the appointment order expressly provided for payment in the scale of pay fixed for 'Vetti' under the Tamil Nadu pattern. The learned counsel therefore contended that neither the 1970 Rules nor the 1980 Rules governed the petitioner's appointment when it was made in 1975. Consequently, the respondents ought to have examined the Rules that were applicable to the petitioner before the 1970 Rules came into force. Rule 1(4) of the Tamil Nadu Village Servants Service Rules, 1980, reads as follows:

> "1. Short title, commencement extent and application. (1) These rules may he called THE TAMIL NADU VILLAGE SERVANTS SERVICE RULES, 1980.
> (2) They shall come into force on the date of their publication in the Tamil Nadu Government Gazette.
> (3) They extend to the whole of the State of Tamil Nadu.
> (4) They shall apply to all Village Servants :-
>
> (i) appointed on or after the coming into force of these rules;
> (ii) appointed under the Madras Proprietary Estates Village Service Act, 1894 (Madras Act 2 of 1894) of the Madras Hereditary Village Officers Act, 1895 (Madras Act 3 of 1895) and who continue to hold office by virtue of sub-section (3) of Section 2 of the Tamil Nadu Proprietary Estates Village Service and the Tamil Nadu Hereditary Village Officers (Repeal) Act, 1963 (Tamil Nadu Act 20 of 1968) or under
> (iii) the Tamil Nadu Village Officers (Appointed under the Board's Standing Orders) Service Rules, 1978; and
> (iv) under the Tamil Nadu Village Officers Service Rules, 1970 on the date of coming into force of these rules." (emphasis supplied)

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12. The learned counsel submitted that, before the reorganisation of States, the posts in question in Kanyakumari District and Sengottai Taluk were full-time posts and not part-time posts. Therefore, a distinction ought to be drawn when applying G.O.Ms.No.625, dated 06.07.1995, which took effect from 01.06.1995. The learned counsel then relied upon the judgment of this Court ***in K. Raman Nair v. The District Collector, Nagercoil and State of Tamil Nadu,*** **W.P.No.1716 of 2005** dated 24.08.2007, in which this Court had directed that the period of service of the petitioner therein be reckoned from 21.07.1975. He submitted that the petitioner in that case, namely, K. Raman Nair, had also been appointed in Kanyakumari District in circumstances similar to those of the present petitioner. His services had been reckoned from the date of his appointment notwithstanding G.O.Ms.No.625, dated 06.07.1995. The relevant portion of the judgment is as follows:

> *"3. From the materials available on record, which do not appear to be disputed, it is apparent that the petitioner was appointed by order dated 21.07.1975 as Thalayari'. Such appointment was on a temporary basis. However, by order dated 06.07.1995 the petitioner's services were regularised. Subsequently he retired from service on 30.11.2000. The authorities have not sanctioned pension to him on the ground that he had not completed 10 years of service after 06.07.1995, the date on which the services of the petitioner were regularised.*

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4. Learned counsel for the petitioner invited In my attention to Rule 11 of the Tamil Nadu Pension Rules as contained in Chapter-III. The counsel also placed reliance upon a decision of a learned Single Judge of this Court in 7.?.??5.15258 and 15468 of 2006, decided on 18.07.2007. the said decision, the learned Single Judge, applying the provisions contained in Rule 11 of the Tamil Nadu Pension Rules, has held that the past services, even in a temporary capacity, is required to be taken into consideration.

5. Having regard to the provisions contained insuch Rules as well as the ratio of the decision in W.P.NOS.15258 and 15468 of 2006, in my considered opinion, the petitioner is entitled to pension. Euch pension should be paid taking into account his entire period of service i.s. with effect from 21.07.1975. The entire pension should be calculated and the arrears of pension payable till the end of August, 2007 should be paid by the end of December, 2007 and the pension payable for the month of September shall be paid during the first week of October and pension for the subsequent periods shall be paid regularly.

6.The writ petition is allowed as per the directions contained in the order. No costs."

13. The learned counsel also referred to the subsequent proceedings in the case of ***District Collector v. K. Raman Nair*, W.A.No.16 of 2009**, dated 16.02.2009. He submitted that the appointment order of K. Raman Nair, dated 21.07.1975, similarly described his appointment as temporary and provided for payment in the scale of pay fixed for Talayari

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under the Tamil Nadu pattern. He further submitted that the decision in K. Raman Nair's case was implemented and that the Special Leave Petition filed before the Hon'ble Supreme Court, SLP No.21683 of 2009, was also dismissed. Consequently, the services of K. Raman Nair were reckoned from 21.07.1975 for pensionary purposes. The relevant extracts from the judgment in W.A.No.16 of 2009 are reproduced below:

> *"**5.** The following facts emerge from the record and for that, we are not able to appreciate the arguments made on behalf of the State. G.O.Ms.No.1914, dated 19th April, 1973, relied on behalf of the appellants, relates to bifurcation of villages and appointment of additional staff, proposals of which were approved, and the notification attached to the same is applicable to those who were in service as on 19th April, 1973, and not to the employees appointed subsequently. The question whether the nature of appointment, is part-time with honorarium or temporary in a scale of pay, not only depends upon the Rules and guidelines but also depends upon the letter of appointment issued in favour of the employee concerned.*
>
> ***6.** It is not in dispute that the writ petitioner was appointed on 21st July, 1975. The said appointment was on temporary basis, in a scale of pay, as evident from the letter of appointment as quoted hereunder:*
>
> "PROCEEDINGS OF THE TAHSILDAR, KALKULAM
> Thiru. A. Madhavan.
> A2/1873/6775/12 Dated: 21-7-1975
> **Sub:** Village Establishment —Kalkulam Taluk
> Appointment of Thalayari- **Order Issued.**

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Ref: 1. G.O.Ms.No.1914, Revenue, dated 19.04.1973.
2. Collector's G1/40516/72, dated 03.07.1975.

The following candidates are temporarily appointed as Thalayaris in the bifurcated villages. They should join duty forthwith in the new villages. They will be paid at the scale of pay fixed for the Thalayari under the Tamil Nadu pattern.

For Tahsildar."
(Emphasis supplied)

7. *The persons who were appointed as per the proceedings dated 21st July, 1975, cannot be guided pursuant to the order of regularisation, contained in G.O.Ms.No.625, Revenue Department, dated 6th July, 1995. Even the said Government Order says that the services of persons appointed as part -time village Assistants and regularised in the time scale of pay of Rs.600-10-750. If, the petitioner was appointed on 21st July, 1975, along with others on temporary basis in the scale of pay for Village Assistants. The respondents cannot deny pensionary benefits to the writ petitioner and others who were appointed along with him, by giving reference to G.O.Ms.No.625, Revenue Department, dated 6th July, 1995, as payment of pension is guided by statutory Rules. Therefore, the said G.O.Ms.No.625, Revenue Department, dated 6th July, 1995, is applicable to those who were initially appointed as part-time Village Assistants and subsequently given full-time appointment by providing a scale of pay to the post of Village Assistants at Rs.600-10-750, and not to those, like the petitioner, who were already temporary Village Assistants in the regular scale of pay.*

8. *Rule 11 of the Tamil Nadu Pension Rules, 1978, to which reference has been made by the learned Single Judge, relates to*

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commencement of qualifying service for payment of pension. The relevant portion thereof is quoted hereunder:

> *"11. Commencement of qualifying service.—(1) Subject to the provisions of these Rules, qualifying service of a Government servant shall commence from the date he takes charge of the post to which he is first appointed, either substantively or in an officiating or temporary capacity. In the case of a Government servant who is appointed on or after the 1st October, 1969, temporary or officiating service rendered in a pensionable post, followed by confirmation, shall count in full as qualifying service even if it is not followed by regular appointment in a substantive capacity."*

It will be evident from the above Rule that for payment of pension, temporary service is also liable to be counted for commencement of qualifying service.

9. *So far as the Village Assistants are concerned, they are guided by Special Rules known as the Tamil Nadu Village Assistants Pension Rules, 1996, which deal with pension and gratuity. The relevant portions of Chapter II of the said Rules are quoted hereunder:*

> *"* ***CHAPTER I — GENERAL***
>
> *(1) These Rules shall be called the Tamil Nadu Village Assistants Pension Rules, 1996.*
>
> *(2) They shall be deemed to have come into force on [date to be verified].*
>
> *(3) These Rules shall apply to the Village Assistants employed in the Revenue Department.*
>
> ***CHAPTER II — PENSION AND GRATUITY***
>
> *(1) The age of retirement shall be 60 years.*
>
> *(4) In computing the length of service for calculation of pension and gratuity, temporary, officiating and permanent (full-time) service shall be reckoned as qualifying service.*
>
> *(b) If there are breaks in service on account of any reason, such breaks shall not have the effect of forfeiting the*

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past service, provided the Village Assistants were discharged or retired as per Rules and orders.

(c) Leave without pay, suspension allowed as a specific penalty, overstayal of joining time or leave not subsequently regularised, and periods of breaks shall not be reckoned as qualifying service.

(7)(1) A Village Assistant shall be eligible for pension if he has rendered a total qualifying service of 10 years or more and was discharged or retired as per Rules and orders.
Pension shall be calculated at 50% of the average emoluments drawn in the last 10 months before retirement for qualifying service of 66 half-years, and proportionate pension shall be paid for a qualifying service of less than 66 half-years, subject to a minimum of Rs.990/-."

10. *From the aforesaid Special Rules pertaining to Village Assistants, it would be evident that not only permanent (full-time) service is to be counted for reckoning the period of service as qualifying service, but temporary (full-time) or officiating (full-time) service shall also be counted for reckoning the period of qualifying service.*

11. *The writ petitioner (respondent herein), having completed more than 10 years of service on a temporary basis, since 21st July 1975, the entire period of service has to be counted for the purpose of granting pension, both as per the Special Rules and the General Rules, more particularly Rule 11 of the Tamil Nadu Pension Rules, 1978.*

12. *In view of our above findings, we uphold the order passed by the learned Single Judge and dismiss the writ appeal. We make it clear that the respondents should pay the amount in favour of the writ petitioner (respondent herein) within one month from today, if not yet paid, failing which they shall be liable to pay 12%*

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interest per annum from the date of the writ petitioner's entitlement."

1.The learned counsel then referred to the judgment of the Hon'ble Division Bench in **State of Tamil Nadu v. E. Balachandran,** reported in **2021 (3) MLJ 92,** the relevant portion of the judgment is as follows:

"22. Therefore, in view of the law laid down as aforesaid, we have no hesitation in holding that the appeals filed by the State are liable to be allowed. There is one more difficulty we may face, This is, with respect to catena of decisions available without taking note of the relevant provisions. Even this issue has been answered by the Full Bench of this Court referred to above, by holding that an issue which is not considered consciously leading to a decision may not be a binding precedent. Thus, illegality cannot be allowed to perpetuate.

23. Learned counsel appearing for the respondents/writ petitioners made reliance upon the decision rendered in Writ Appeal (MD) Nos. 1254 and 1255 of 2019 dated 19.11.2019 in the matter of the State of Tamil Nadu, rep. by its Secretary, Department of Revenue v. Chinna Karuppaiah. We are afraid that the said decision will not enable the respondents from getting the relief. As aforesaid, the relevant Rules were not brought to the notice of the Court and Rule 16 of the Tamil Nadu Village Servants Service Rules, 1980, speaks about the status of the erstwhile Village Assistants and Village Officers such as Talaiyari and Karnams. Insofar as Talaiyaris are concerned, the part-time posts were sought to be abolished by fixing fixed compensation for the said work done and thereafter, a

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concession was given by bringing them under regular time scale of pay. The Government Orders concerned, which we discussed, followed by the Rules framed for the aforesaid purpose was not brought to the notice of the Court. We may note at the cost of repetition, but for the Government Order passed on 06.07.1995, the respondents Talaiyaris would have continued to have the status of part-time employees only. Therefore, it is not open to them to consider even from the inception that they were full-time employees, when there was no regular full-time scale of pay on a cadre basis.

24. The reliance made on the Tamil Nadu Village Servants Service Rules also is not correct, since it is to be applied prospectively for the new appointments. Therefore, there is no question of deemed permanent status contrary to the Rules and in any case, the respondents cannot approbate and reprobate."

14. He submitted that, in the said judgment, the Hon'ble Division Bench had held that the relevant Rules would operate prospectively. According to him, the judgment dealt with Village Officers, including Karnams, and their status as part-time officers. He further submitted that the judgment distinguished between Village Karnams and Additional Village Karnams. The learned counsel contended that, although the judgment dealt with the applicability of the Tamil Nadu Pension Rules to Talayari, it did not consider the specific issue concerning 'Vetti' and Nirganti appointed in Kanyakumari District and Sengottai Taluk. He therefore submitted that the

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said judgment could not be applied to the petitioner's case without examining the distinction raised by him. The learned counsel also relied upon the decision of the Hon'ble Full Bench of this Court in ***A. Elangovan v. State of Tamil Nadu***, reported in **2026 (3) CTC 1**, dated 06.04.2026, and referred to the question of law considered therein and the findings rendered by the Hon'ble Full Bench. The relevant portions of the said judgment are extracted below:

> *"2. Before detailing the reasons which prevailed upon the learned sing Judge to refer the matter to a Larger Bench, the point of reference, as has bee formulated and placed before this Court for an authoritative answer, is a under:*
>
> *"Whether the 50% service rendered by the Petitioner as part time Village Assistant has to be taken into account along with the regular service period to determine the pensionary benefits or not, as per the Judgment dated 8.1.2010 of the Apex Court in SLP (CC) No. 21683/2009.*
>
> *31. The findings recorded in Balachandran case has clearly laid dow the correct law, more particularly appreciating the ratio with regard to tl legal position that only such of the posts borne out of cadre alone are entitl for pensionable benefit as has been enunciated in Kaliyamoorthy case wi reference to qualifying service and further holding that the persons employ in the said posts alone are entitled to seek for counting 50% of their servi rendered in the said post prior to regularisation for the purpose of pensiona benefit. However, the decisions in Velmayil and Chinna Karuppaiah ca have not laid down the correct law as they*

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have neither adverted to t position of law relating to posts borne out of the cadre and also wi reference to the part-time employment of the Village Assistants an therefore, the said decisions can only be said to be per incuriam as ti relevant provisions of the various Rules governing the conduct, service al pension of Village Assistants have not been adverted to.

32. Further, as afore stated, the decision in Raman Nair case also wou be of no help in advancing the case of Village Assistants for counting 50 of the service rendered prior to 1.6.1995 for the purpose of arriving at t total service as, to a particular extent it supports the decision Balachandran case. Furtherr, the said decision stands on an entire to be the factual position that could be discerned with regard to the post of Village Assistants enmasse, who were appointed on part-time basis prior to 1.6.1995. Further, the Appeal against the decision in Raman Nair case before the Apex Court in S.L.P.(CC) No.21683/2009 having left the legal issue open, the said decision of the Apex Court would not in any manner tilt the balance against the decision in Balachandran case to doubt the correctness of the said order nor would the decision of the Apex Court in any manner ensure to the benefit of the case of the Village Assistants.

33. In fine, on the reasons aforesaid, this Court answers the reference in the following terms:

"The persons, who were employed as Village Assistants/Talayaris prior to 1.6.1995, the date on which the service of Village Assistants/Talayaris were regularised, would not be entitled to count 50% of their service rendered in the pre-regularised period, viz., prior to 1.6.1995, for the purpose pensionary benefits, as the said posts held by them were part-time posts and not posts borne out of service or cadre."

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34. Though this Court is only required to answer the reference and send the matter back to the learned Single Judge for further hearing, in view of the fact that the learned Counsel for the parties have made their submissions not only on the merits of the case, but also on the basis of the facts in the present Writ Petition and have no objection to this Bench deciding the case, this Court would proceed to analyse the facts of the present case to find out whether the Petitioner is entitled for seeking the said benefit by applying the ratio laid down above.

35. A perusal of the materials available on record, more particularly, the communication addressed by the Petitioner to the Respondents seeking to count the period of service rendered by the Petitioner as Village Assistant prior to 1.6.1995, it clearly shows that the Petitioner himself has admitted that he was a part-time Village Assistant, as is evident from the subject of the communication. When the fact that the Petitioner was a part-time Village Assistant has been admitted by the Petitioner himself and the Petitioner has admitted that he was neither occupying the post of Village Assistant temporarily nor in an officiating capacity nor in a permanent capacity, which post is borne out of a cadre and, therefore, applying the answer to t reference, it can safely be concluded that the Petitioner is not entitled to have 50% of his service, rendered prior to 1.6.1995, counted for the purpose calculating the pensionary benefits. Therefore, the relief sought for by Petitioner cannot be granted and necessarily this Writ Petition deserves to dismissed.

36. Accordingly, this Writ Petition fails and the same stands dismissed. There shall be no order as to Costs."

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15. He would submit that the reference before the Hon'ble Full Bench concerned the question of reckoning the past service rendered by Village Assistants/Talayari prior to their regularisation pursuant to G.O.Ms.No.625, Revenue Department, dated 06.07.1995. He would contend that the Hon'ble Full Bench considered the issue only in the context of persons who had been appointed as part-time Village Assistants and that the case of persons like the petitioner, who were appointed as full-time employees on a time scale of pay, was not considered. He would therefore submit that the said judgment is distinguishable on facts and that the reliance placed by the respondents, as well as in the impugned order, upon the aforesaid Full Bench decision to reject the petitioner's claim is misplaced.

16. The learned counsel appearing for the petitioner would submit that neither the earlier Division Bench nor the Hon'ble Full Bench considered the cases of appointees from the erstwhile Kanyakumari District and Sengottai Taluk, who do not fall within the category of part-time workers. He would therefore contend that G.O.Ms.No.625 would not apply to the petitioner, as his appointment was made as early as 10.11.1975, under the then applicable rules, as a temporary employee on a time scale of pay. He

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would submit that the petitioner was already a full-time employee and that the benefit of G.O.Ms.No.625 was not required to be extended to him. According to him, the petitioner's case is covered by the judgments rendered in the case of ***K. Raman Nair (referred Supra).*** He therefore contended that neither the earlier Division Bench decisions nor the Full Bench decision had specifically considered the case of persons appointed on a temporary basis in a specified scale of pay in Kanyakumari District prior to the issuance of G.O.Ms.No.625, Revenue Department, dated 06.07.1995, or before the Tamil Nadu Village Servants Service Rules, 1980, came into force on 21.01.1981.

2.The learned counsel would further refer to the judgment of this Court in the case of ***Government of Tamil Nadu v. R. Kaliyamoorthy***, reported in **2019 (6) CTC 705**, and drew the attention of this Court to the questions referred for consideration, as set out in the following paragraphs of the judgment:

> *"1. This Full Bench was constituted by the Honourable The Chief Justice pursuant to the Order, dated 29.8.2018 passed by the Division Bench of this Court in W.A. No.1218 of 2018, etc., batch to refer the below mentioned issue for an authoritative pronouncement:*
>
> > *"In view of the provisions of the Tamil Nadu Pension Rules, as amended, if a Government servant is regularised in service after 1.4.2003 whether such a person will be entitled to count 50% of the past service rendered prior to regularisation for the purpose of computing his Pension under the old Pension scheme."*
>
> *2. For the sake of clarity, we are paraphrasing the above reference as follows:*

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"Whether half of the past service rendered by Government servants whose appointments were regularised after 1.4.2003 can be counted for the purpose of grant of Pension under the provisions of the Tamil Nadu Pension Rules, 1978 in the light of the amendments to the aforesaid Rules vide G.O.Ms. No.259, Finance (Pension) Department, dated 6.8.2003 and G.O.Ms. No.41, Finance (Pension) Department, dated 8.2.2010."

45. In the light of the above, we answer the reference as follows:

(i) Those, who are freshly appointed on or after 1.4.2003 are not entitled to Pension in view of Proviso to Rule 2 of Tamil Nadu Pension Rules. 1978 inserted by G.O.Ms. No.259, dated 6.8.2003

(ii) Those Government servants/Employees appointed prior to 1.4.2003 whether on Temporary or Permanent basis in terms of Rule 10(a)(i) of Tamil Nadu State and Subordinate Service Rules will be entitled to get Pension as per the Tamil Nadu Pension Rules, 1978.

(iii) In case, a Government Employee/servant had also rendered service in Non-Provincialised service, or on Consolidated pay or on Honorarium or Daily Wage basis and if such services were regularised before 1.4.2003, half of such service rendered shall be counted for the purpose of conferment of Pensionary benefits.

(iv) Those Government servants, who were appointed in the aforesaid four categories before the cut off date and later appointed under Rule 10(a)(i) of Tamil Nadu State and Subordinate Service Rules before. 1.4.2003 and absorbed into Regular service after 1.4.2003 will not be entitled to count half of their past service for the purpose of determination of qualifying service for Pension.

(v) Those Government servants, who were appointed in the aforesaid four categories before 1.4.2003 but were absorbed in Regular service after 1.4.2003 will not be entitled to count half of their past service for the purpose of determination of qualifying service for Pension."

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17. He would submit that, applying the principles laid down therein, Government servants appointed prior to 01.02.2003, whether on a temporary or permanent basis, in terms of Rule 10(a)(1) of the Tamil Nadu State and Subordinate Service Rules, would be entitled to pension under the Tamil Nadu Pension Rules, 1978. He would therefore contend that, since the petitioner was appointed in the year 1975, his case is saved by the decision of the aforesaid Hon'ble Full Bench, particularly paragraph 45(iii), and that his past service is liable to be reckoned for pensionary benefits. The learned counsel would thereafter refer to the recent decision of the Hon'ble Division Bench of this Court in ***C. Chellaswamy v. State of Tamil Nadu,*** **W.A.Nos. 1047 to 1049 of 2019** dated 11.08.2026, wherein the appeals were dismissed on the ground that the issue stood covered by the judgment in ***A. Elangovan (referred Supra)*** reported in **2026 (3) CTC 1.** He would submit that the issue was no longer confined to the appointments of the petitioners therein as Talayari in the year 1975 on a temporary basis. He would reiterate that neither the earlier Division Benches nor the Hon'ble Full Bench had considered the specific case of persons appointed prior to the issuance of G.O.Ms.No.625, dated 06.07.1995, and before the Tamil Nadu Village Servants Service Rules, 1980, came into force with effect from 21.01.1981.

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18. The learned counsel would further submit that, in the erstwhile Travancore-Cochin State, village officers were permanent employees rendering full-time service. According to him, when the Tamil Nadu Village Officers Service Rules, 1970, were framed, the same were not made applicable to Kanyakumari District, Shencottah Taluk and the City of Madras, whereas they were made applicable to the other districts and taluks of the State of Tamil Nadu. He would contend that, in the other districts and taluks, the village headmen, village Karnams, Talayari, Vetti and Nirganti were engaged as part-time workers, unlike the village officers in the aforesaid areas, who were full-time employees. The learned counsel would also refer to Sections 119 and 120 of the States Reorganisation Act, 1956, and submit that, if the State of Tamil Nadu intended to alter, modify or change any law in force immediately before the appointed day, the same ought to have been done in accordance with the provisions of the said Act. He would contend that, in the absence of any such modification in the manner contemplated under the Act, the law applicable to the petitioner on the date of his appointment would continue to govern his service conditions. According to him, the petitioner was appointed as a full-time employee, though on a temporary basis, and would therefore be entitled to have his past service reckoned, applying the

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principles laid down in paragraph 45(ii) of the judgment in ***R. Kaliyamoorthy*** **(referred supra).**

19. To substantiate his contention regarding Sections 119 and 120 of the States Reorganisation Act, 1956, the learned counsel would rely upon an early judgment of the Andhra Pradesh High Court rendered by the Hon'ble Chief Justice K. Subba Rao, as he then was, in the case **of *B. Satyanarayanamurthi v. Income-tax Appellate Tribunal*** reported in **1957 SCC OnLine AP 38.** He would draw the attention of this Court to paragraphs 15 and 16 of the said judgment and submit that, if the State of Tamil Nadu intended to make any change to the law in force immediately before the appointed day, such change ought to have been effected in accordance with the provisions of the States Reorganisation Act, 1956, within the period contemplated therein. The relevant extracts of the judgement are as follows:

> *"**15.** Lastly, the learned counsel advanced an acceptable argument, which should have been presented in the forefront. To appreciate this argument, some relevant facts may be stated. The Telangana area, in which Hyderabad city is situated, formed part of the State of Hyderabad till 1st November, 1956. Section 3 of the States Reorganisation Act, 1956, added the territories comprised in the area popularly called Telangana to the Andhra State. The writ now sought to be issued is against the Income-tax Appellate Tribunal*

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situated in the City of Hyderabad. Learned counsel contends that, though Telangana area was integrated with the Andhra State from 1st November, 1956, the laws of the territory were preserved under the States' Reorganisation Act till the competent Legislature made the necessary adaptations and modifications of the laws within one year from the appointed day and as no such adaptations have yet been made the provisions of the Hyderabad Court-Fees Act would apply to proceedings taken in the erstwhile Telangana area. To appreciate this contention, the relevant provisions of the States Reorganisation Act, 1956, may be read:

> *"Section 119:— The provisions of Part II shall not be deemed to have effected any change in the territories to which any law in force immediately before the appointed day extends or applies and territorial references in any such law to an existing State shall until otherwise provided by a competent Legislature or other competent authority, be construed as meaning the territories within the State immediately before the appointed day".*
>
> *Section 120:— For the purpose of facilitating the application of any law in relation to any of the States formed or territorially altered by the provisions of Part II, the appropriate Government may, before the expiration of one year from the appointed day, by order make such adaptations and modifications of law, whether by way of repeal or amendment, as may be necessary or expedient and thereupon every such law shall have effect subject to the adaptations and modifications so made until altered, repealed or amended by a competent Legislature or other competent authority.*
>
> *Section: 121: Power to construe laws:— Notwithstanding that no provision or insufficient provision has been made under section 120 for the adaptations of a law made before the appointed day, any Court, tribunal or authority required or empowered to enforce such*

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law may, for the purpose of facilitating its applications in relation to any State formed or territorially altered by the provisions of Part II, construe the law in such manner without affecting the substance, as may be necessary or proper in regard to the matter before the Court, tribunal or authority."

16. *Section 119 enacts that, for the purpose of the application of the laws, there must be deemed to have been no change in the territories, though Telangana is now a part of the State of Andhra Pradesh, the laws of the State of the Hyderabad will be in force in that area as if there was no disintegration of that area of the State of Hyderabad and integration of the same with the State of Andhra Pradesh. The laws in that area would continue to prevail and govern the rights of parties till the competent Legislature or other competent authority otherwise provides. Section 120 confers a power on the appropriate Governments before the expiration of one year from the appointed day to make such adaptations and modifications in law and the law with such adaptations and modifications will prevail till the competent Legislature or authority amends the law. So, too, if the appropriate Government exercises its powers and makes suitable orders under section 120, and, if a lacuna is found in such orders, the Courts, for the purpose of facilitating the application of the laws without affecting the substance may, under section 121, construe the law in such manner as is necessary to facilitate the application of the laws in relation to the territory altered by the Act. In the instant case, no order making the necessary adaptations and modifications was made under section 120 and, therefore there is no scope for the Courts to construe the provisions of the Act in this manner provided by section 121. The result is that the law obtaining in the State of Hyderabad before the appointed day would still govern the rights of parties in the Telangana area. The law of Court-fees*

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obtaining before that date in the State of Hyderabad is the Hyderabad Court-Fees Act and, therefore the Hyderabad Court-fees Act governs the proceedings arising out of that area. In the present case, the petitioner seeks the aid of the High Court to issue a writ of mandamus against a Tribunal situated in the Hyderabad City. The Hyderabad Court-fees Act, which was the law obtaining in the State of Hyderbad before the appointed day, would apply to such a proceeding. If so, the Court-fee payable under Schedule II, Serial No. 1(d) is Rs. 2 on a writ petition."

20. The learned counsel would further rely upon the judgment of this Court in ***C.K. Velayudhan Nair v. District Collector***, **W.P.No.5201 of 2007,** dated 09.10.2009. The relevant extracts from the said judgment are extracted hereinbelow:

"2. The following are the undisputed facts:
a) The present Kanyakumari District had been a part of the erstwhile Travancore Cochin State, prior to the enactment of the State Reorganisation Act, 1956. The village administration of erstwhile Travancore Cochin State was manned by full-time regular village-level staff, such as Village Officer, Village Assistant, Copyist and Village Men. Consequent on the reorganisation of States, the Kanyakumari District got amalgamated with the State of Tamil Nadu. Consequently, the village level staff of erstwhile Travancore Cochin State employed in Kanyakumari District were absorbed into the service of Tamil Nadu Government.
b) While the village level staff in Kanyakumari District were full time employees, as stated above, the village administration war manned by part-time hereditary Village Officers viz., Village Headmen (Munsif) and Village Karnam in the rest of the parts of the State of Tamil Nadu.
c) In the year 1980, promulgated an Ordinance i.e. Tamil Nadu Ordinance No.10 of 1980, to the Government of Tamil Nadu abolish the post of part-time hereditary Village Officers in the State of Tamil Nadu. While part-time

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Village Officers posts were abolished, a new system of full-time officers was introduced. That is, Village Administrative Officers were appointed to man village administration. The post of Village Administrative Officer was brought within the purview of Tamil Nadu Public Service Commission, through competitive examination.

d) While part-time Village Officers posts were abolished, Section 10 of the Ordinance permitted the existing Village Assistants and Village Officers to continue in Kanyakumari District as they were already full-time Government employees.

c) The part-time Village Officers approached the Honourable While Supreme Court challenging the validity of the Ordinance. upholding the Ordinance, the Honourable Supreme Court directed the Tamil Nadu Government to provide employment to the erstwhile part-time Village Officers, who were sought to be terminated, the post of Village Administrative Officers, if they were otherwise qualified to hold the post of Village Administrative Officers. Screening Committees at State level and District constituted to select eligible and qualified persons from among the ex-part time Village Officers Administrative Officers. for appointment Hence, the level were as Village

f) In Kanyakumari District also, part-time Village officers were appointed in the vacancies that arose in the post of Village Assistants / Village Officers, after the District came to be amalgamated with the State of Tamil Nadu. There were 73 such part-time Village officers and 47 of them were appointed as Village Administrative Officers, after the Screening Committee cleared them.

g) In respect of 34 Villages, where the Travancore Cochin State pattern Village Officers and Village Assistants were working, they were grouped together at the ratio of 1:1 per village and were appointed to carry the duties connected administration.

3.The petitioners were Village Assistants among those 986. They were promoted as Village Officers from 5.11.1986 and 20.02.1985 respectively. The Village Assistants and Village Officers were governed by the Service Rules framed under Article 309 of the Constitution, called the Tamil Nadu Village (Transferred Territories) Service Rules, 1983 and that was given retrospective effect from 01.11.1956. The Village Officers were not paid the same salary as paid to the Village Administrative Officers. Therefore, they

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were claiming parity with Village Administrative Officers. It is their case that they were doing the same duties as carried out by the Village Administrative Officers and that therefore, they are entitled to be paid the same wages."

21. He would submit that the said case also concerned village officers and village assistants appointed in the erstwhile Travancore-Cochin State and employed in Kanyakumari District, who were subsequently absorbed into the service of the Government of Tamil Nadu. He would draw the attention of this Court to the factual findings therein, which indicate that village administration in the erstwhile Travancore-Cochin State was manned by full-time regular village-level staff, including village officers, village assistants, peons and village men. He would further submit that the abolition of part-time hereditary village officers under the relevant Tamil Nadu enactment did not apply to the petitioners therein, who had been appointed as full-time employees. He specifically refer to paragraph 3 of the aforesaid judgment and submit that the Tamil Nadu Village Officers Recruitment, Transfer and Territory Service Rules, 1973, were framed to govern persons appointed under the erstwhile Travancore-Cochin Government Orders. However, the said Rules were given retrospective effect from 01.01.1956. He would contend that such retrospective application was contrary to Sections

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119 and 120 of the States Reorganisation Act, 1956, and that the retrospective date prescribed under the Rules could not, by itself, determine the law applicable to the petitioner on the date of his appointment. In this regard, the relevant extracts of Sections 119 and 120 of the States Reorganisation Act, 1956, are reproduced below:

> *"119. **Territorial extent of laws.***
>
> *- The provisions of Part II shall not be deemed to have effected any change in the territories to which any law in force immediately before the appointed day extends or applies, and territorial references in any such law to an existing State shall, until otherwise provided by a competent Legislature or other competent authority. be construed as meaning the territories within that State immediately before the appointed day.*
>
> ***120. Power to adapt laws.***
>
> *- For the purpose'of facilitating the application ofany law in relation to any of the States [or Union territories] [Inserted by 1 A.L.O., 1956 (1-11-1956)] formed or territorially altered by the provisions of Part 11. the appropriate Government may. before the expiration of one year from the appointed day, by order make such adaptations and modifications of the law, whether by way of repeal or amendment, as may be necessary or expedient. and thereupon every such law shall have effect subject to the adaptations and modifications so made until altered, repealed or*

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amended by a competent Legislature or other competent authority.

Explanation. - In this section, the expression "appropriate Government" means

(a)as respects any law relating to a matter enumerated in the Union List, the Central Government; and

(b)as respects any other law

(i)in its application to a [*] [the word and letter "Part A" were omitted by 1 A.L.O., 1956 (1-11-1956)] State, the State Government, and

(ii)in its application to a [Union territory] [Substituted by 1 A.L.O., 1956 for the words "Part C State"] the Central Government."

22. The learned counsel would also refer to the judgment of the Hon'ble Division Bench of this Court in ***State of Tamil Nadu v. C.K. Velayudhan Nair and K. Bhaskaran Nair*, W.A. No. 301 of 2013,** dated 28.02.2013 arising out of the order passed in ***C.K. Velayudhan Nair and K. Bhaskaran Nair v. State of Tamil Nadu,* W.P.No.5201 of 2007** dated 09.10.2009, wherein the order of the learned Single Judge was confirmed. He would submit that, although the issue concerning promotion to the post of Village Administrative Officer under G.O.Ms.No.933 was considered in the

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said proceedings, the issue relating to the appointment of village officers in Kanyakumari District and Sengottai Taluk was also discussed. He would therefore contend that, since the petitioner was appointed as a full-time village officer in the year 1975, his past service ought to be reckoned from the date of his appointment, unlike the cases of other village servants governed by G.O.Ms.No.625.

23. Per contra, the learned counsel appearing for the respondents would, at the outset, submit that the writ petition is liable to be dismissed on the ground of laches and delay. He would point out that the petitioner was appointed on 10.11.1975 and that the Government had brought the part-time village assistants under full-time employment pursuant to G.O.Ms.No.625, dated 06.07.1995. The petitioner retired from service on 30.09.2007 but approached this Court only in the year 2021. He would submit that the cause of action, if any, had arisen as early as 06.07.1995, when G.O.Ms.No.625 was issued. However, the petitioner approached this Court only in the year 2021, after a considerable delay of nearly 26 years from the date of issuance of the Government Order and about 14 years after his retirement in 2007. He would therefore contend that the writ petition is liable to be dismissed on the ground

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of delay and laches. He would further submit that the petitioner cannot revive a stale claim by submitting a representation and thereafter approaching this Court for its disposal. In this regard, he would rely upon the judgment of the Hon'ble Supreme Court in ***C. Jacob v. Director of Geology and Mining*****,** reported **in 2008 (10) SCC 115,** wherein it was held that the submission of a representation and a subsequent direction for its consideration would not create a fresh cause of action in respect of a stale claim. The relevant extracts of the judgment are as follows:

> *"7. Every representation to the government for relief, may not be replied on merits. Representations relating to matters which have become stale or barred by limitation, can be rejected on that ground alone, without examining the merits of the claim. In regard to representations unrelated to the department, the reply may be only to inform that the matter did not concern the department or to inform the appropriate department. Representations with incomplete particulars may be replied by seeking relevant particulars. The replies to such representations, cannot furnish a fresh cause of action or revive a stale or dead claim.*
>
> *8. When a direction is issued by a court/tribunal to consider or deal with the representation, usually the directee (person directed) examines the matter on merits, being under the impression that failure to do may amount to disobedience. When an order is passed considering and rejecting the claim or representation, in compliance with direction of the court or tribunal, such an order does not revive the stale claim, nor amount to some kind of*

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`acknowledgment of a jural relationship' to give rise to a fresh cause of action.

24. He would also submit that the issue is no longer res integra and further submit that the issue has already been settled by the Hon'ble Full Bench of this Court in ***A. Elangovan (referred Supra).*** The learned counsel appearing for the respondents would contend that the petitioner is attempting to reopen an issue that has already been conclusively settled by this Court. He would rely upon the subsequent decisions, including ***E. Balachandran (supra) and C. Chellaswamy v. State of Tamil Nadu (supra),*** and submit that the petitioner's case is squarely covered by the principles laid down therein and that no distinction can be drawn between the petitioner's case and the cases considered in the aforesaid judgments. The learned counsel would further submit that G.O.Ms.No.625, dated 06.07.1995, covers all classes of village officers and does not make any distinction based on the district or taluk in which they served. He would draw the attention of this Court to the following paragraphs of the said Government Order:

> "2. குழுவின் பரிந்துரைகளுக்கு உரிய முக்கியத்துவம் அளித்து அரசு விரிவாக ஆய்வு செய்தது. புகதி நேர கிராம உதவியாளர்களை முழு நேர கிராம உதவியாளர்களை முழு நேர அரசு ஊழியர்களாக மாற்றி ரூ.

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600-10,750 என்ற ஊதியம் நிர்ணயம் செய்து அரசு ஆணையிடுகிறது. தற்போது நடைமுறையில் உள்ள விதிகளின் கீழ் வழங்கப்பட்டு வரும் அனைத்து ஊதிய அடிப்படையிலான படிகள், அகவிலைப்படி, வீட்டு வாடகைப்படி மற்றும் மருத்துவப்படி போன்றவை பெறுவதற்கும் மற்றும் அரசு ஊழியர்கள் பெறும் அனைத்து பயன்களையும் (Benefits) இவர்கள் பெற தகுதி உடையவர்கள் ஆவார்கள் என்றும் ஆணையிடுகிறது.

3. மேலே பத்தி 2ல் உள்ள ஆணைகள் முன் தேதியிட்டு 1.6.95 முதல் நடைமுறைக்கு கொண்டு வரப்படுகிறது என்று அரசு மேலும் ஆணையிடுகிறது.

4. தற்போது மாநிலம் முழுவதும் சுமார் 28,000 கிராம உதவியாளர்கள் உள்ளனர் என கணக்கிடப்பட்டுள்ளது. இனி வரும் காலங்களில் வருவாய் கிராமங்களின் எண்ணிக்கையை மனதில் கொண்டு கிராம உதவியாளர்களின் எண்ணிக்கையை படிப்படியாக குறைத்து, ஒரு நிலையில் (இறப்பு, பணி முதிர்ச்சி போன்ற நிலைகளில் ஏற்படும் பணியிடங்களை நிரப்பாமல் நிலையாக்க தேவைப்படுகிறது".

25. He would contend that the Government was conscious of the different nomenclatures used for village officers in various parts of the State while issuing the Government Order. He would therefore submit that the petitioner cannot claim exemption from its application merely on the ground that he belonged to Kanyakumari District or that he was appointed under a different nomenclature. The learned counsel would also submit that the Tamil Nadu Village Officers Service Rules, 1980, came into force with effect from 21.01.1981, in supersession of the Tamil Nadu Village Officers Service Rules, 1970. He would contend that the 1980 Rules were made applicable to the

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relevant categories of village servants, including persons holding posts such as Talayari, 'Vetti', Nirganti. Since the petitioner was appointed as a 'Vetti', he would fall within the scope of the said Rules. He would further submit that the petitioner cannot seek to rely upon the earlier rules on the ground that they were applicable on the date of his appointment, particularly when the 1970 Rules were not applicable to the area in which he was appointed.

26. The issue that arises for consideration is whether the petitioner is entitled to have his services reckoned from 10.11.1975, the date of his initial appointment, for the purpose of computing his pensionary benefits under the Tamil Nadu Pension Rules, 1978, particularly Rule 11(4) thereof.

27. The learned counsel appearing for the petitioner has elaborately referred to the various decisions and rules governing the appointment and service conditions of village servants and village officers. However, the threshold objection raised by the respondents regarding delay and laches requires consideration. The petitioner has not satisfactorily explained why he did not approach this Court within a reasonable time,

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particularly when he retired from service on 30.09.2007 and submitted his representation only on 12.03.2015, nearly eight years after his retirement. It is seen that the petitioner approached this Court in W.P.No.6590 of 2015, seeking a direction to the respondents to consider his representation. Pursuant to the order passed by this Court on 23.03.2019, the respondents passed the impugned order dated 16.12.2019. The impugned order was passed more than twelve years after his retirement, in respect of a claim that ought to have been raised when G.O.Ms.No.625, dated 06.07.1995, was issued, treating all village officers and servants en masse as part-time employees. However, the direction to consider the representation cannot, by itself, confer a fresh cause of action upon the petitioner in respect of a claim that had become stale. In this regard, the principles laid down by the Hon'ble Supreme Court in **C. Jacob (referred supra)** are relevant. The petitioner cannot revive a stale claim merely by submitting a representation and obtaining a direction for its consideration.

28. It is true that the appointment order of the petitioner, extracted earlier, indicates that he was appointed temporarily and placed on a time scale of pay. The appointment order further states that the appointment

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was purely temporary and that the petitioner would be paid the scale of pay fixed for a 'Vetti' under the Tamil Nadu pattern. The appointment was made on 10.11.1975 and refers to G.O.Ms.No.3597, dated 28.11.1970. However, neither the petitioner nor the respondents have placed the said Government Order before this Court. It has been represented at the Bar that the Government Order is not traceable. It is also pertinent to note that the States Reorganisation Act, 1956, came into force on 01.11.1956, whereas the petitioner was appointed only on 10.11.1975. The Tamil Nadu Village Officers Service Rules, 1970, were stated to be inapplicable to Kanyakumari District and the areas referred to by the petitioner. Subsequently, The Tamil Nadu Village Officers Service Rules, 1980, which came into force with effect from 21.01.1981, were issued in supersession of the 1970 Rules and brought within their scope the village officers governed under various enactments. Rule 1(4) and Rule 3 specifically provides for the applicability of the said Rules to the relevant categories of village officers. Thus, by virtue of the application of the said Rules, the petitioner also fell within their scope.

29. The petitioner has relied upon Sections 119 and 120 of the States Reorganisation Act, 1956, to contend that any alteration or

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modification of the law applicable to him ought to have been made in accordance with the procedure prescribed under the said provisions. There can be no quarrel with the general proposition that the continuation or alteration of laws following the reorganisation of States is governed by the relevant provisions of the Act. However, the petitioner was appointed only in the year 1975, long after the States Reorganisation Act came into force. Had the petitioner been appointed under the law applicable to the erstwhile Travancore-Cochin State before the reorganisation and had his service continued following the transfer of territories to the State of Tamil Nadu, a question could have arisen as to whether the law governing his appointment had been modified in accordance with Sections 119 and 120 of the Act. In the present case, the petitioner's appointment was made in 1975 under the Tamil Nadu pattern. Therefore, the reliance placed on the aforesaid provisions and the judgment in ***B. Satyanarayana Murthy (supra)*** does not support the petitioner's case.

30. The issue need not detain this Court any further in view of the authoritative pronouncement of the Hon'ble Full Bench in ***A. Elangovan*** **(supra).** The legal position has also been considered in the subsequent

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decision of the Hon'ble Division Bench in ***C. Chellaswamy*** **(supra).** In view of the settled position of law, the petitioner has not made out a case warranting a different conclusion merely on the basis of the date of his appointment or the nature of his initial appointment as a temporary employee on a time scale of pay.

31. In the light of the foregoing discussion, this Court is unable to accept the petitioner's contention that his past service is liable to be reckoned from 08.11.1975 for the purpose of pensionary benefits. The petitioner has also failed to overcome the objection regarding delay and laches. Therefore, this Court finds no ground to interfere with the impugned order dated 16.12.2019 passed by the second respondent in Na.Ka. Aa2/47522/2018.

32. Accordingly, the writ petition stands dismissed. There shall be no order as to costs.

16.10.2026

NCC :yes/No
Index :yes/No
Internet:yes/No
KSA

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TO

1. The Secretary,
   State Of Tamilnadu,
   Revenue Department,
   Saint George Fort,
   Chennai – 600 009.

2. The District Collector,
   Nagercoil,
   Kanyakumari District.

3. The Tahsildar,
   Thovalai Taluk,
   Thovalai,
   Kanyakumari District.

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RAJNISH PATHIYIL, J.

KSA

Order in
WP(MD) NO. 2535 of 2017

16 .10.2026

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